

DEEMED ADMITTED by Defendant.

3. The genuineness of the documents attached to the RFAs (referenced as the “Terms and Conditions” and the “billing statement”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L25-04056
CASE NAME: TD BANK USA, N.A. VS. TAHAYA GRANT
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant and Judgment Tahaya Grant (“Defendant”) filed a Motion to Vacate Judgment on November 17, 2025 seeking to vacate the default and default judgment previously entered herein (“Motion to Vacate”). The Motion to Vacate was set for hearing on January 6, 2025. No opposition has been filed.

Defendant’s motion was signed on November 13, 2025 and filed by the clerk on November 17, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party’s Proof of Service reflects that the motion papers were served on November 13, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service reflecting service of the Motion to Vacate filed as part of the moving papers on November 17, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Motion to Vacate.** In its discretion, the Court hereby continues the matter to **February 10, 2026, 9:00 a.m.** in **Department 14** of the Court to ensure that notice of the hearing has properly been given to the Plaintiff. Defendant shall file and serve an amended notice of the motion **on or before January 9, 2026.**

8. 9:00 AM CASE NUMBER: L25-08588
CASE NAME: WELLS FARGO BANK, N.A. VS. MAELVIN HILARIO
HEARING IN RE: MOTION AND MOTION TO COMPEL ARBITRATION AND STAY PROCEEDING
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Defendant Maelvin Hilario (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceeding on November 7, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on January 6, 2026.

Plaintiff filed an Opposition on December 19, 2025.

A Reply was filed by Defendant on December 24, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant's motion contends that the parties' contract contains "an arbitration clause allowing either party to elect arbitration..." See Declaration of Maelvin Hilario attached as part of Arbitration Motion, p. 6, ¶3.

Although the referenced cardmember agreement with the arbitration clause is not attached to the motion papers, Plaintiff's Opposition concedes that the subject credit card agreement contains an arbitration clause and attaches a copy. See Opposition, p. 2 and **Exhibit A** thereto (Complaint with attached "Consumer Credit Card Customer Agreement").

Accordingly, the Court finds that a written agreement to arbitrate exists, as set forth in the Consumer Credit Card Customer Agreement (the "Arbitration Agreement"). See Arbitration Agreement, p. 17, ¶16. The Arbitration Agreement is governed by the FAA.* *Id.* ("This Arbitration Agreement and any resulting arbitration are governed by the provisions of the Federal Arbitration Act").

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

The Court has considered and rejects Plaintiff's contention that the motion should be denied because Defendant waived the right to arbitrate the pending dispute.

To establish such a waiver, the party opposing enforcement of the arbitration clause must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 3.49. The same standard applies to determining waiver under the FAA as under California law. *Id.*

The courts have identified the following factors as relevant for consideration: (1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether "the litigation machinery has been substantially invoked" and the parties "were well into preparation of a lawsuit" before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) "whether important intervening steps (e.g., taking advantage of judicial discovery procedures not available in arbitration) had taken place;" and (6) whether the delay "affected, misled, or prejudiced the opposing party." *Spracher v. Paul M. Zagaris, Inc.* (2019) 39 Cal.App.5th 1135, 1138

The evidence shows here that Defendant moved promptly to seek to compel arbitration by this motion within a few months of filing Defendant's Answer to the Complaint, which Answer expressly raised and referenced electing to exercise the right to arbitration:

Sixth Affirmative Defense: (Arbitration)
The applicable credit card agreement contains a binding Arbitration Clause. I elect arbitration and reserve the right to move this court to compel arbitration under the Federal Arbitration Act.

See Answer filed September 10, 2025.

Indeed, this written election was more than adequate to constitute a demand for arbitration under the Arbitration Agreement. See Arbitration Agreement, p. 17, ¶16 (arbitration may be initiated "...upon demand by either you or the Bank...").

Plaintiff has not shown that it was somehow misled or lulled into engaging in substantial court litigation only to have arbitration sought at the last minute.

Based on the foregoing and the totality of the other evidence, the Court finds that Plaintiff has failed to carry its burden of proving by clear and convincing evidence that Defendant knew of the contractual right to arbitration and intentionally relinquished or abandoned it.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement. Plaintiff's filing of a lawsuit and its opposition to the pending motion is sufficient to show refusal or failure to arbitrate the controversy.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, *supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall initiate the arbitration before the American Arbitration Association (AAA) unless the parties agree to a different forum pursuant to the terms and condition of the Arbitration Agreement (the "Arbitration Service Provider").** Defendant shall initiate the arbitration process in accordance with the Arbitration Agreement and any applicable rules of the Arbitration Service Provider.
3. The pending action is STAYED until an arbitration is completed pursuant to the

terms and conditions of the Arbitration Agreement or further order of the Court.

4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

9. 9:00 AM CASE NUMBER: L25-10329

CASE NAME: ODK CAPITAL, LLC VS. ASHLEY ZIEGLER

HEARING IN RE: MOTION TO COMPEL

FILED BY:

TENTATIVE RULING:

Defendant Ashley Ziegler (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on November 12, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on January 6, 2026. The motion is unopposed.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving